

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BRANDEE ISOM,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

NYPD POLICE OFFICER MARTIN VERENDIA,
Shield No. 5871, and NYPD OFFICERS JOHN/JANE
DOES NUMBERS 1-10,

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 23, 2021

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MARTIN VERENDIA, Shield No. 5871, 52nd Precinct; 3016
Webster Avenue, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BRANDEE ISOM,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

NYPD POLICE OFFICER MARTIN VERENDIA,
Shield No. 5871, and NYPD OFFICERS JOHN/JANE
DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff BRANDEE ISOM, by her attorneys, Shulman-Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 7, 2020, at approximately 5:00pm, Plaintiff BRANDEE ISOM, while lawfully in the vicinity of Davidson Avenue and West 183rd Street, in Bronx County, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendants NYPD Officers. In addition, Plaintiff was subjected to unnecessary force, assault, and battery, and has thus suffered physical, emotional, and psychological distress as result of the above-mentioned violations. Plaintiff was then unlawfully imprisoned at the 52nd Precinct and Bronx County Central Bookings for approximately 48 hours until plaintiff was arraigned in Criminal Court, charged with crimes she did not commit, and released on bail. Plaintiff was denied the right to due process and a fair trial until the resisting arrest charges against Plaintiff were dismissed and sealed on or about May 12, 2021. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRANDEE ISOM is a resident of the State of New York.
3. NYPD POLICE OFFICER MARTIN VERENDIA, Shield No. 5871, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER MARTIN VERENDIA, Shield No. 5871, was at all times relevant herein, assigned to the PSA 1 Precinct.
5. NYPD POLICE OFFICER MARTIN VERENDIA, Shield No. 5871, is being sued in his individual and official capacity.
6. New York City Police Officers John/Jane Does Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. New York City Police Officers John/Jane Does Numbers 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On April 7, 2020, at approximately 5:00 pm, Plaintiff was lawfully present in the vicinity of Davidson Avenue and West 183rd Street in Bronx, New York, when the defendant police officers unlawfully stopped, questioned, assaulted, battered, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

13. Plaintiff had left work on the evening of April 7, 2021, and was walking in the vicinity of Davidson Avenue and West 183rd Street when she spotted a friend of hers.

14. The plaintiff stopped for a quick chat with her friend, and within minutes an unmarked vehicle pulled up onto the curb where they were standing.

15. At this point defendant officers exited the vehicle and approached the plaintiff and her friend while aiming a taser at them.

16. Without identifying himself as a police officer or giving any warning, a defendant officer tased the plaintiff's friend in the back of the head and spine, causing him to fall unconscious to the ground.

17. Plaintiff ran to her friend's side and pleaded with the defendant officers to call an ambulance for him.

18. At this point the Defendant Officers punched the plaintiff in the face, tackled her to the ground, and began to arrest her.

19. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

20. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

21. At no point did Plaintiff resist arrest.

22. Plaintiff was then searched by Defendant Officers, and no contraband was found.

23. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody or control.

24. Still bleeding from her lip and jaw, Plaintiff was then transported by defendants officers to the 52nd Precinct police station against her will, where she was unlawfully photographed, fingerprinted, and detained in a holding cell.

25. While in custody, the defendant officer made verbal threats to the plaintiff, and told her, "I'm going to make your life a living hell; I'm going to make sure you lose your job."

26. Plaintiff was then transported from the 52nd Precinct to Bronx County Central Bookings.

27. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

28. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that the plaintiff was engaged in Assault on a police officer and Obstructing Governmental Administration.

29. On April 8, 2020, after approximately 24 hours in unlawful custody, Plaintiff was arraigned in Bronx County Criminal Court, charged with crimes that the defendant officers had no basis to allege that she committed, and the judge set her bail at \$5,000.00.

30. On April 9, 2020, after approximately 48 hours in unlawful custody, the plaintiff made bail and was released from Bronx County Central Bookings.

31. On May 12, 2021, the criminal charges which were made against the plaintiff were adjourned in contemplation of dismissal.

32. Plaintiff was fired from her job as a mental health counselor as a result of the arrest and subsequent false charges made against her by defendant officers on April 7, 2020.

33. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

34. The unlawful search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

35. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

37. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

38. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

44. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

46. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

47. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

50. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

52. Defendants lacked probable cause to search Plaintiff.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights**Denial of Right to Fair Trial/Due Process**

57. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein

58. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

59. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

60. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

61. In withholding/creating false evidence against Plaintiff BRANDEE ISOM, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

62. As a result of the foregoing, Plaintiff BRANDEE ISOM sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of her constitutional rights.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights**

66. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

67. The use of excessive force by defendants by, amongst other things, by punching and tackling her, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

69. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

70. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Failure to Intervene

72. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

73. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was physically injured, humiliated, and subject to other physical constraints.

76. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRANDEE ISOM demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 23, 2021

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MARTIN VERENDIA, Shield No. 5871, 52nd Precinct; 3016
Webster Avenue, Bronx, NY 10467

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 23, 2021



CARY LONDON